

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS-----X  
ALLA BYCHENKOVA,

Plaintiff,

--against--

WOMEN IN NEED, INC., NEW YORK CITY POLICE  
DEPARTMENT, JOHN DOES 1-5 (fictitious names  
intended to identify the police officers that responded to  
the scene), NEW YORK DEPARTMENT OF  
HOMELESS SERVICES, and THE CITY OF NEW YORK,Defendants.  
-----X

Index No.:

Date Purchased:

**SUMMONS**Plaintiff designates Kings  
County as the place of trial.The basis of venue is:  
Plaintiff's residence

County of Kings

**To the above-named Defendants:**

**You are hereby summoned** to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

**JURY TRIAL DEMANDED**Dated: Brooklyn, New York  
May 27, 2020*Michelle Kariyeva, ESQ.*

MICHELLE KARIYEVA, ESQ.

**LEVITSKY LAW FIRM***Attorneys for Plaintiff***ALLA BYCHENKOVA**

3163 Coney Island Avenue 2nd Floor

Brooklyn, NY 11235

(347) 462-1660

Our File No.: DL00641

TO:

WOMEN IN NEED, INC.  
115 West 31st Street  
New York, NY 10001

NEW YORK CITY POLICE DEPARTMENT  
1 Police Plaza Path  
New York, NY 10007

NEW YORK DEPARTMENT OF HOMELESS SERVICES  
100 Church Street  
New York, NY 10007

THE CITY OF NEW YORK  
100 Church Street  
New York, NY 10007

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

-----X  
ALLA BYCHENKOVA,

Plaintiff,

Index No.:

Date Purchased:

--against--

**VERIFIED COMPLAINT**

WOMEN IN NEED, INC., NEW YORK CITY POLICE  
DEPARTMENT, JOHN DOES 1-5 (fictitious names  
intended to identify the police officers that responded to  
the scene), NEW YORK DEPARTMENT OF  
HOMELESS SERVICES, and THE CITY OF NEW YORK,

Defendants.

-----X

Plaintiff, **ALLA BYCHENKOVA**, by her attorneys, **LEVITSKY LAW FIRM**,  
complaining of the Defendants, respectfully alleges, upon information and belief, as follows:

1. That at the time of the commencement of this action, Plaintiff resided in the County  
of Kings, City and State of New York.
2. That the cause of action alleged herein arose in the County of Kings, City and State  
of New York.
3. That this action falls within one or more of the exemptions set forth in CPLR §1602.
4. That on June 10, 2019, and at all times hereinafter mentioned, Defendant **WOMEN IN  
NEED, INC.** was and still is a business corporation duly organized and existing under and by  
virtue of the laws of the State of New York.
5. That on June 10, 2019, and at all times hereinafter mentioned, Defendant **WOMEN IN  
NEED, INC.** was and is a business entity duly organized and existing under and by virtue of the  
laws of the State of New York.

6. That on June 10, 2019, and at all times hereinafter mentioned, Defendant **WOMEN IN NEED, INC.** was and is a corporation and/or business entity duly licensed to transact business in the State of New York.

7. That on June 10, 2019, and at all times hereinafter mentioned, Defendant **WOMEN IN NEED, INC.** conducted business and maintained offices within the State of New York.

8. That on June 10, 2019, and at all times hereinafter mentioned, Defendant **WOMEN IN NEED, INC.** was and still is a business corporation, duly authorized to do business in the State of New York.

9. That on June 10, 2019, and at all times hereinafter mentioned, Defendant **WOMEN IN NEED, INC.** maintained its principal place of business within the State of New York.

10. That on June 10, 2019, and at all times hereinafter mentioned, Defendant **WOMEN IN NEED, INC.** had an ownership interest in the premises known as “WIN Glenwood Family Residence”, located at or near 4612 Glenwood Road, Brooklyn, New York 11234 (hereinafter “premises”).

11. That on June 10, 2019, and at all times hereinafter mentioned, Defendant **WOMEN IN NEED, INC.** committed a tortious act within the State of New York.

12. That on June 10, 2019, and at all times hereinafter mentioned, Defendant **WOMEN IN NEED, INC.** committed a tortious act in the aforementioned premises.

13. That on June 10, 2019, and at all times hereinafter mentioned, Defendant **WOMEN IN**

**NEED, INC.** regularly does, or solicits, business in the State of New York.

14. That on June 10, 2019, and at all times hereinafter mentioned, Defendant **WOMEN IN NEED, INC.** received substantial revenue from goods used or consumed, or services rendered, in the State of New York.

15. That at all times herein mentioned, Defendant **THE CITY OF NEW YORK** was and still is a municipal corporation, duly organized and existing pursuant to the laws of the State of New York.

16. That the Defendant **THE CITY OF NEW YORK** maintains a police force known as **THE NEW YORK CITY POLICE DEPARTMENT**.

17. That prior hereto on October 14, 2019, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with Plaintiff's demands for adjustment or payment thereof, and that thereafter **THE CITY OF NEW YORK** refused or neglected for more than (30) days and up to the commencement of this action to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

18. That pursuant to the General Municipal Law, the Statutory 50-H hearing of Plaintiff was not held.

19. That at no point in time, Defendant **THE CITY OF NEW YORK** even requested the Plaintiff **ALLA BYCHENKOVA** to submit to a 50-H hearing.

20. That on June 10, 2019, and at all times hereinafter mentioned, and upon information and

belief, Defendant **THE CITY OF NEW YORK** employed **JOHN DOES 1-5 (fictitious names intended to identify the police officers that responded to the scene)** as yet unidentified, as agents, servants and/or employees.

21. That on June 10, 2019, and at all times hereinafter mentioned, Defendant **NEW YORK DEPARTMENT OF HOMELESS SERVICES** was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

22. That on June 10, 2019, and at all times hereinafter mentioned, Defendant **NEW YORK DEPARTMENT OF HOMELESS SERVICES** was and is a business entity duly organized and existing under and by virtue of the laws of the State of New York.

23. That on June 10, 2019, and at all times hereinafter mentioned, Defendant **NEW YORK DEPARTMENT OF HOMELESS SERVICES** was and is a corporation and/or business entity duly licensed to transact business in the State of New York.

24. That on June 10, 2019, and at all times hereinafter mentioned, Defendant **NEW YORK DEPARTMENT OF HOMELESS SERVICES** conducted business and maintained offices within the State of New York.

25. That on June 10, 2019, and at all times hereinafter mentioned, Defendant **NEW YORK DEPARTMENT OF HOMELESS SERVICES**, was and still is a business corporation, duly authorized to do business in the State of New York.

26. That on June 10, 2019, and at all times hereinafter mentioned, Defendant **NEW YORK**

**DEPARTMENT OF HOMELESS SERVICES** committed a tortious act within the State of New York.

27. That on June 10, 2019, and at all times hereinafter mentioned, Defendant **NEW YORK DEPARTMENT OF HOMELESS SERVICES**, regularly does, or solicits, business in the State of New York.

28. That on June 10, 2019, and at all times hereinafter mentioned, Defendant **NEW YORK DEPARTMENT OF HOMELESS SERVICES** received substantial revenue from goods used or consumed, or services rendered, in the State of New York.

**AS FOR A FIRST CAUSE OF ACTION FOR ASSAULT AND BATTERY ON BEHALF  
OF THE PLAINTIFF, ALLA BYCHENKOVA**

29. The Plaintiff repeats, reiterates and realleges each and every allegation contained in this Complaint numbered “1” through “28” with the same force and effect.

30. That on June 10, 2019, and at all times hereinafter mentioned, Plaintiff, **ALLA BYCHENKOVA** was lawfully present in **WIN GLENWOOD FAMILY RESIDENCE** known as 4612 Glenwood Road, Brooklyn, New York 11234.

31. That on June 10, 2019, and at all times hereinafter mentioned, and upon information and belief, at the aforementioned location, Plaintiff **ALLA BYCHENKOVA**, while at the aforesaid premises, was assaulted and severely battered by Defendant **JOHN DOES 1-5 (fictitious names intended to identify the police officers that responded to the scene)**, while acting as an agent, servant, and or sales agent of the Defendants **NEW YORK CITY POLICE DEPARTMENT** and **THE CITY OF NEW YORK**.

32. That on June 10, 2019, and at all times hereinafter mentioned, and upon information and belief, Defendant **JOHN DOES 1-5 (fictitious names intended to identify the police officers that responded to the scene)**, was acting within the scope of their employment at the time they assaulted and battered Plaintiff, **ALLA BYCHENKOVA**.

33. That on June 10, 2019, at all times hereinafter mentioned, and upon information and belief, the assault and battery committed by Defendant **JOHN DOES 1-5 (fictitious names intended to identify the police officers that responded to the scene)**, was committed while acting in furtherance of the employment with Defendants **NEW YORK CITY POLICE DEPARTMENT** and **THE CITY OF NEW YORK**.

34. That Defendants **NEW YORK CITY POLICE DEPARTMENT** and **THE CITY OF NEW YORK** are vicariously liable for the tortious acts of its employees.

35. That on June 10, 2019, the Defendant **JOHN DOES 1-5 (fictitious names intended to identify the police officers that responded to the scene)**, while acting within the scope of employment for **NEW YORK CITY POLICE DEPARTMENT** and **THE CITY OF NEW YORK**, intended for Plaintiff **ALLA BYCHENKOVA** to be subjected to imminent harmful or offensive contact.

36. That on June 10, 2019, and at all times hereinafter mentioned and upon information and belief, Plaintiff **ALLA BYCHENKOVA**, was assaulted and battered by Defendant **JOHN DOES 1-5 (fictitious names intended to identify the police officers that responded to the scene)**, who were acting within the scope of their employment with Defendants **NEW YORK CITY POLICE DEPARTMENT** and **THE CITY OF NEW YORK**, at the aforesaid premises.



37. That on June 10, 2019, and at all times hereinafter mentioned, and upon information and belief, the aforementioned assault and battery was performed, knowingly, intentionally and willfully.

38. That on June 10, 2019, and at all times hereinafter mentioned, and upon information and belief, Defendant **JOHN DOES 1-5 (fictitious names intended to identify the police officers that responded to the scene)**, who committed the aforementioned assault and battery upon Plaintiff **ALLA BYCHENKOVA**, were acting within the scope of their employment with Defendants **NEW YORK CITY POLICE DEPARTMENT** and **THE CITY OF NEW YORK**.

39. That on June 10, 2019, and at all times hereinafter mentioned, and upon information and belief, the assault and battery on the Plaintiff was without probable cause and was not the result of an appropriate arrest.

40. By reason of said assault and battery the Plaintiff was caused to suffer severe and serious injuries in and about diverse parts of the person, and suffered great pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

41. The Plaintiff **ALLA BYCHENKOVA**, was caused to sustain serious injuries and to have suffered pain, shock, mental anguish; that these injuries and their effects will be permanent; as a result of said injuries Plaintiff was caused and will continue to be caused to incur expenses for medical care and attention; and Plaintiff was and will continue to be rendered unable to perform Plaintiff's normal activities and duties and has sustained a resultant loss therefrom.

42. By reason of the foregoing, Plaintiff **ALLA BYCHENKOVA**, sustained damages in an amount exceeding the jurisdictional limits of all lower Courts.

**AS FOR A SECOND CAUSE OF ACTION FOR NEGLIGENCE ON BEHALF OF  
THE PLAINTIFF, ALLA BYCHENKOVA**

43. Plaintiff repeats, reiterates and realleges each and every allegation contained in this Complaint number “1” through “42” with full force and effect.

44. The Defendants and/or their agents, servants, and/or employees, were careless and negligent in committing the tortious acts of assault and battery, false imprisonment, and intentionally inflicting emotional distress upon the Plaintiff.

45. As a result of said negligence, Plaintiff **ALLA BYCHENKOVA**, became sick, sore, lame and disabled, received severe and serious injuries in and about diverse parts of her person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma, and was otherwise injured.

46. That as a result of the Defendants’ negligence, Plaintiff sustained damages in an amount exceeding the jurisdictional limits of all lower Courts.

**AS FOR A THIRD CAUSE OF ACTION FOR INTENTIONAL INFLECTION OF  
EMOTIONAL DISTRESS ON BEHALF OF THE PLAINTIFF,**

**ALLA BYCHENKOVA**

47. Plaintiff repeats, reiterates and realleges each and every allegation contained in this Complaint number “1” through “46” with full force and effect.

48. Defendants acted in a manner that was criminal, intentional, negligent and willful, wanton, and with total disregard in causing serious and substantial emotional distress to Plaintiff **ALLA BYCHENKOVA**.

49. The Defendants acted in a manner that was likewise criminal, intentional, negligent,

willful, wanton, and with total disregard to the serious harm being inflicted upon Plaintiff **ALLA BYCHENKOVA** through their capacity in allowing, enabling, and permitting Defendants to intentionally and negligently confine Plaintiff against her will, assault, batter, and then negligently and carelessly injured her while being forcefully strapped down against Plaintiff's will by the Defendants.

50. As a result of the foregoing, Plaintiff **ALLA BYCHENKOVA** sustained physical, emotional, and psychological injuries, along with pain and suffering.

51. Defendants intentionally engaged in conduct towards Plaintiff that is extreme and outrageous so as to exceed the bounds of decency in a civilized society.

52. Defendants' actions and conduct, both individually and collectively, intentionally, carelessly, and negligently caused Plaintiff to suffer severe emotional distress.

53. As a direct and proximate result of Defendants' conduct, Plaintiff **ALLA BYCHENKOVA**, has suffered, and continues to suffer, severe emotional distress, for which she is entitled to an award of damages.

54. That as a result of the foregoing, Plaintiff **ALLA BYCHENKOVA** has been damaged in an amount having a present value which exceeds the jurisdictional limit of all lower courts which would otherwise have jurisdiction of this matter.

**AS FOR A FOURTH CAUSE OF ACTION FOR FALSE IMPRISONMENT ON  
BEHALF OF THE PLAINTIFF, ALLA BYCHENKOVA**

55. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the Complaint numbered "1" through "54" with full force and effect.

56. Defendants in a continuous course of conduct, restrained and confined the Plaintiff against

her will without her consent, through either force or other consequence, where she had no reasonable means of escape.

57. As a direct and proximate result of the aforementioned false imprisonment, Plaintiff **ALLA BYCHENKOVA** sustained in the past, and will sustain in the future, physical injury, pain and suffering, serious psychological emotional distress, mental anguish, embarrassment and humiliation.

**AS FOR A FIFTH CAUSE OF ACTION AGAINST ALL DEFENDANTS FOR NEGLIGENT  
HIRING, RETENTION AND SUPERVISION ON BEHALF OF THE PLAINTIFF,**

**ALLA BYCHENKOVA**

58. That as a result of the foregoing, Plaintiff **ALLA BYCHENKOVA** has been damaged in an amount having a present value which exceeds the jurisdictional limit of all lower courts which would otherwise have jurisdiction of this matter.

59. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the Complaint numbered “1” through “58” with full force and effect.

60. That the Defendants – jointly and/or severally – had a duty to exercise reasonable care in the hiring, retaining, supervising, promoting, and training of their agents, servants, and/or employees.

61. That the Defendants – jointly and/or severally – were negligent, careless, and grossly negligent in the hiring, retaining, supervising promoting, and training of its agents, servants, and/or employees.

62. That the Defendants – jointly and/or severally – did not exercise reasonable care and diligence in the hiring, retention, supervision, promotion, and training of their agents, servants, and/or employees and were negligent in the hiring, retention, supervision, promotion, and training

of the Defendants and/or their agents, servants, and/or employees, who assaulted, battered, intentionally inflicted emotional distress, falsely imprisoned, and otherwise completely violated the civil rights of the Plaintiff, **ALLA BYCHENKOVA**.

63. That the Defendants – jointly and/or severally – had prior knowledge of the inappropriate, unlawful, and improper conduct of the Defendants and/or their agents, servants, and/or employees, and continued to employ them and allowed them to be in contact with the public at large.

64. That the aforesaid occurrence was caused by reason of the negligence of all Defendants, – jointly and/or severally – its agents, servants, and/or employees and without any negligence on the part of the Plaintiff contributing thereto.

65. That as a result of the foregoing, Plaintiff **ALLA BYCHENKOVA** has been damaged in an amount having a present value which exceeds the jurisdictional limit of all lower courts which would otherwise have jurisdiction of this matter.

**AS FOR A SIXTH CAUSE OF ACTION AGAINST ALL DEFENDANTS FOR PUNITIVE  
DAMAGES ON BEHALF OF THE PLAINTIFF,  
ALLA BYCHENKOVA**

66. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the Complaint numbered “1” through “65” with full force and effect.

67. The actions of the Defendants herein were intentional, careless, and grossly negligent.

68. Defendant **WOMEN IN NEED, INC.**, on premises known as “WIN Glenwood Family Residence”, located at or near 4612 Glenwood Road, Brooklyn, New York 11234, where the incident occurred, operated and still operates under the umbrella of the **NEW YORK DEPARTMENT OF HOMELESS SERVICES**, in which it authorized, permitted and ratified the unlawful and negligent acts of their agents, servants, and/or employees, herein-above alleged.

69. Defendant **NEW YORK CITY POLICE DEPARTMENT** authorized, permitted and ratified the unlawful and negligent acts of their agents, servants, and/or employees, including but not limited to **JOHN DOES 1-5 (fictitious names intended to identify the police officers that responded to the scene)**, herein-above alleged.

70. Defendant **THE CITY OF NEW YORK**, authorized, permitted and ratified the unlawful and negligent acts of its agents, servants, and/or employees, which led Plaintiff to sustain severe personal injuries.

71. Punitive damages are warranted based on these facts.

72. That as a result of the foregoing, Plaintiff **ALLA BYCHENKOVA** has been damaged in an amount having a present value which exceeds the jurisdictional limit of all lower courts which would otherwise have jurisdiction of this matter.

**WHEREFORE**, Plaintiff, **ALLA BYCHENKOVA**, demands judgment against the Defendants – both compensatory and exemplary – in an amount exceeding the jurisdictional limits of all lower Courts in each individual cause of action described herein; together with attorneys' fees and the costs and disbursements of this action.

Dated: Brooklyn, New York  
May 27, 2020

*Michelle Kariyeva, ESQ.*

MICHELLE KARIYEVA, ESQ.

**LEVITSKY LAW FIRM**

*Attorneys for Plaintiff*

**ALLA BYCHENKOVA**

3163 Coney Island Avenue 2nd Floor

Brooklyn, NY 11235

(347) 462-1660

Our File No.: DL00641

**ATTORNEY'S VERIFICATION**

**MICHELLE KARIYEVA, ESQ.**, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an associate attorney at Levitsky Law Firm, attorneys of record for the Plaintiff, **ALLA BYCHENKOVA**, in the action within. I have read the annexed **SUMMONS AND VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters, I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon personal conversations with the Plaintiffs, personal conversations between my office staff and the Plaintiffs herein, records, photographs, videos and other pertinent information or evidentiary information contained in my files.

Dated: Brooklyn, New York  
May 27, 2020

*Michelle Kariyeva, ESQ.*  
Michelle Kariyeva, Esq.

Index No.  
SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

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ALLA BYCHENKOVA,

Plaintiff,

--against--

WOMEN IN NEED, INC., NEW YORK CITY POLICE DEPARTMENT, JOHN DOES 1-5  
(fictitious names intended to identify the police officers that responded to the scene), NEW  
YORK DEPARTMENT OF HOMELESS SERVICES, and THE CITY OF NEW YORK,

Defendants.

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**SUMMONS AND VERIFIED COMPLAINT**

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**LEVITSKY LAW FIRM**  
*Attorneys for Plaintiff*  
**3163 Coney Island Avenue 2nd Floor**  
**Brooklyn, New York 11235**  
**(347)462-1660**

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The undersigned attorney hereby certifies, pursuant to 22 NYCRR 130-1.1-a that he/she  
has read the within papers and that same are not frivolous as that term is defined in 22  
NYCRR 130-1.1(c).

*Michelle Kariyeva, Esq.*  
Michelle Kariyeva, Esq.